

24STCV33728 24STCV33728

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-27

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Case Number: 24STCV33728 Hearing Date: August 27, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 27, 2026

Case Name: Scott v. Access Services, et
al.

Case

No.: 24STCV33728

Matter: Motion For Relief from Mistake, Inadvertence,
Surprise, Or Excusable Neglect Under Code of Civil Procedure § 473(b)

Moving

Party: Plaintiff Gwendolyn

Scott

Responding Party: Defendants Access Services and Global
Paratransit, Inc.

Tentative Ruling: Plaintiff

Gwendolyn Scott motion for relief is denied.

Plaintiff

Gwendolyn Scott ("Plaintiff") filed this action against Defendants Access
Services ("Access"), Global Paratransit, Inc. ("Global"), County of Los Angeles

("County"), and Does 1 to 50 (collectively "Defendants"). The Complaint alleged two causes of action against Defendants for: (1) motor vehicle negligence; and (2) general negligence.

On October
15, 2025, Plaintiff dismissed her action against County.

On March
26, 2026, the Court granted Defendants Access Services and Global Paratransit, Inc.'s unopposed motion for summary judgment.

On March
27, 2026, the Court dismissed Plaintiff's action.

Plaintiff
moves for discretionary relief pursuant to Code of Civil Procedure section 473, subdivision (b). Defendants oppose.

Legal Standard

Code of
Civil Procedure section 473, subdivision (b) provides for either
discretionary or mandatory relief from certain prior actions or proceedings in
the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119,
1124.)

"Under the discretionary relief
provision, on a showing of "mistake, inadvertence, surprise, or excusable
neglect," the court has discretion to allow relief from a "judgment, dismissal,
order, or other proceeding taken against" a party or his or her
attorney. Under the mandatory relief provision, on the other hand, upon a
showing by attorney declaration of "mistake, inadvertence, surprise, or
neglect," the court shall vacate any "resulting default judgment or dismissal
entered." [Citation.] Applications seeking relief under the mandatory
provision of section 473 must be 'accompanied by an attorney's sworn affidavit
attesting to his or her mistake, inadvertence, surprise, or neglect.' The
mandatory provision further adds that 'whenever relief is granted based on an
attorney's affidavit of fault [the court shall] direct the attorney to pay
reasonable compensatory legal fees and costs to opposing counsel or
parties.'" (*Ibid.*; Code Civ. Proc., § 473, subd.

(b).)¿¿

Analysis

Plaintiff

moves for discretionary relief pursuant to Code of Civil Procedure section 473, subdivision (b) on the grounds of mistakes, inadvertence, surprise, and excusable neglect. Plaintiff requests that the Court set aside the order granting summary judgment, and resulting judgment of dismissal, and set a new briefing and hearing schedule, or, in the alternative, grant Plaintiff relief from costs. (Mot., 3:18-21.)

Plaintiff

contends that relief is warranted because Plaintiff's Counsel ("Counsel") failed to calendar the opposition deadline and the hearing date in relation to Defendant's motion for summary judgment was not calendared. (Gasparyan Decl., ¶ 6.) Counsel also asserts that an unexpected illness and a family emergency occurred. (Ibid.) Also, Counsel contends that she was not properly served. (Gasparyan Decl., ¶ 9, 13.) Counsel declares that she did not learn about the Court's ruling until April 7, 2026. (Gasparyan Decl., ¶ 14.)

As an

initial matter, the mandatory relief available under Code of Civil Procedure section 473, subdivision (b) is limited to a "narrow class of cases in which a default judgment or a dismissal has been entered." (Prieto v. Loyola Marymount University (2005) 132 Cal.App.4th 290, 297, Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC (2013) 219 Cal.App.4th 1086, 1091.) Plaintiff is barred from mandatory relief because she seeks relief by setting aside a summary judgment ruling.

The

Court finds that Counsel has not met its burden under the discretionary prong. Plaintiff declares in a conclusory manner that she faced unexpected illness and a family emergency but does not provide any explanation as to how these two separate circumstances prevented her from filing an opposition or attending the hearing on the motion for summary judgment.

Furthermore,

the cases Plaintiff relies on to support her claim that discretionary relief is unavailing. In Elston v. City of Turlock (1985) 38 Cal.3d 227, the court

reviewed the trial court's decision to deny Code of Civil Procedure section 473 to set aside deemed admissions on the ground of excusable neglect. (Id. at p. 231.) Similarly, *Toon v. Pickwick Stages*, Northern Division (1924) 66 Cal.App. 450 was regarding a motion to set aside the default, not a ruling on a motion for summary judgment.

"To grant

discretionary relief, "the proffered evidence must show that the attorney's error was excusable." (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423.) "Relevant factors in assessing counsel error include: "(1) the nature of the mistake or neglect; and (2) whether counsel was otherwise diligent in investigating and pursuing the claim." [Citation.] "Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable." [Citation.] "To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice." (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423.)

Counsel

argues that she was not properly served with the motion and notice of non-opposition because one of her paralegals was not served. (*Gasparian Decl.*, ¶¶ 3, 6.) However, the Court finds Counsel's argument unavailing. Counsel claims to take full responsibility for failing to oppose Defendants' motion for summary judgment, but at the same time blames lack of service as the basis for why she did not oppose. (*Gasparian Decl.*, ¶ 6.)

In

opposition, Defendants contend that Counsel's arguments that she was not properly served are without merit because she was served and the Defendants updated the service list per Counsel and her staff's request. (*Cheung Decl.*, ¶¶ 5-10, 13, Ex. A-G.) Most importantly, Counsel declares under penalty of perjury that she was served with Defendant's moving papers. (*Gasparian Decl.*, ¶ 3.) Counsel provides no specific details as to which paralegal was not served, which is the alleged cause for why she did not file an opposition.

Thus, the

Court finds that Counsel's failure to oppose Defendants' motion for summary judgment does not warrant discretionary relief pursuant to Code of Civil Procedure section 473, subdivision (b).

In the alternative, Plaintiff requests that the Court to “grant relief of costs associated with the case, as the motion was brought very late into the Action and based on a legal issue.” (Mot., 7:9-12.) The Court denies Plaintiff’s request because she provides no legal basis to grant the relief she seeks or further argument that would warrant such relief.

Therefore, the Court denies Plaintiff’s motion in its entirety.

Conclusion

Plaintiff Gwendolyn Scott’s motion for relief pursuant to the discretionary prong of Code of Civil Procedure section 473, subdivision (b) is denied.